



CHANNEL PARTNER AND AFFILIATE AGREEMENT

THIS AGREEMENT is made on this _____ day of _____, **2026** (the "**Effective Date**"),

BETWEEN:

1. TBS Technologies Private Limited, a company incorporated under the Companies Act, 2013, having its Permanent Account Number (AABCT3955D), Goods and Services Tax identification number (33AABCT3955D1ZL), and registered office at [130, 2nd Floor, Muneer Complex Palani Road, Udumalaipettai, Tamilnadu, India - 642126] (hereinafter referred to as the "**Company**" or "**Licensor**");

AND

2. _____, a [Sole Proprietorship / Partnership / Private Limited Company], having its Permanent Account Number _____, Goods and Services Tax identification number _____, and principal place of business at _____ (hereinafter referred to as the "**Partner**" or "**Affiliate**").

(Collectively referred to as the "**Parties**" and individually as a "**Party**").

1. BACKGROUND AND RECITALS

WHEREAS:

A. The Company has developed and owns a proprietary software application known as "**POWERCA**" designed for Office Administration and Job Management for Chartered Accountants and related professional service providers (collectively referred to as the "**Product**");

B. The Company holds all intellectual property rights, copyrights, trademarks, and proprietary interests in the Product, including but not limited to the source code, documentation, and branding materials;

C. The Partner is engaged in the business of providing software sales, implementation services, and technical support to professional service providers, particularly within the Tally ecosystem and Chartered Accountant community;

D. The Partner possesses established relationships and credibility within the target market (Chartered Accountants), technical expertise in implementation, and capacity to provide onboarding and training services;



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E. The Parties desire to enter into a mutually beneficial arrangement whereby the Partner will market, promote, sell, and implement the Product to End-Users (Chartered Accountants) within the specified Territory under the terms and conditions defined herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, the Parties agree as follows:

2. APPOINTMENT AND SCOPE OF ENGAGEMENT

2.1 Appointment as Non-Exclusive Channel Partner

The Company hereby appoints the Partner as a **non-exclusive** Channel Partner and Affiliate to market, promote, demonstrate, and solicit orders for the Product within the territory of **[India / Specific State(s) / City(ies)]** (the "**Territory**"). The non-exclusive nature means:

- The Company retains the right to appoint additional Channel Partners in the same Territory.
- The Company may directly sell and distribute the Product within the Territory.
- The Partner may not restrict or interfere with other authorized distributors.

2.2 Authorized Services

The Partner is authorized to provide the following services:

(a) Distribution and Sales:

- Market and promote the Product to prospective customers within the Territory.
- Conduct product demonstrations and presentations.
- Generate qualified leads and close sales.
- Negotiate pricing within Company-approved parameters (if any).

(b) Implementation Services ("Implementation Services"):

- Onboarding and account setup for End-Users.
- Data migration from existing systems (Tally/legacy platforms) to the Product.
- Staff training and user enablement on Product features and functionality.
- Customization and configuration support (within reasonable scope).
- Post-implementation support (Tier 1 technical support).



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2.3 Territorial Limitation

All marketing, sales, and implementation activities must be conducted solely within the designated Territory. The Partner shall not market or sell the Product outside the Territory without prior written consent from the Company.

3. OBLIGATIONS OF THE PARTNER

3.1 Marketing and Sales Obligations

The Partner agrees to:

- (a)** Use its best efforts, resources, and skills to promote and market the Product to its existing and new client base of Chartered Accountants, corporate offices, and other eligible End-Users;
- (b)** Maintain and regularly update the Company regarding the status of sales prospects, lead pipeline, and conversion rates;
- (c)** Conduct professional product demonstrations that accurately represent Product capabilities;
- (d)** Respond promptly (within 24 hours) to inquiries and requests for information from prospective customers;
- (e)** Maintain a professional sales approach and provide honest, factual information regarding the Product.

3.2 Product Knowledge and Training

The Partner shall:

- (a)** Ensure that all personnel involved in sales, demonstrations, and implementation possess adequate knowledge of the Product's features, functionality, and technical requirements;
- (b)** Attend training sessions and webinars conducted by the Company to stay updated on Product updates, new features, and best practices;
- (c)** Obtain and maintain certification or competency verification as specified by the Company from time to time.



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3.3 Implementation Services

Upon execution of a customer sales agreement, the Partner shall:

- (a)** Conduct initial discovery sessions to understand the End-User's business requirements and existing system architecture;
- (b)** Oversee account setup, user creation, and configuration of the Product to match the End-User's workflows;
- (c)** Plan and execute data migration from the End-User's existing systems (e.g., Tally, spreadsheets) into the Product, ensuring data integrity and accuracy;
- (d)** Conduct comprehensive staff training sessions covering:
 - Product navigation and basic functionality.
 - Job management and billing workflow.
 - Report generation and analytics.
 - Integration with Tally (if applicable).
- (e)** Provide post-implementation support (Tier 1) for usage questions, login issues, and configuration adjustments during the first 30-60 days;
- (f)** Maintain detailed implementation documentation and handover notes for the End-User and the Company.

3.4 Code of Conduct

The Partner commits to:

- (a)** Maintain professional standards and ethical business practices in all interactions with prospects, customers, and the Company;
- (b)** Not make any false, misleading, or exaggerated claims regarding the Product's capabilities, performance, or compliance;
- (c)** Not disparage the Company, the Product, or competing solutions in communications with customers;
- (d)** Comply with all applicable laws, regulations, and industry standards;
- (e)** Not engage in any unlawful or unethical practices including bribery, corruption, or fraudulent misrepresentation.



3.5 Customer Service and Support

The Partner shall:

- (a)** Maintain responsive customer service, responding to End-User inquiries within 48 hours;
- (b)** Serve as the primary point of contact for all Tier 1 technical support (usage questions, login issues, basic troubleshooting);
- (c)** Escalate complex technical issues, bugs, or system errors to the Company's technical support team;
- (d)** Conduct periodic check-ins with End-Users to ensure satisfaction and identify upsell or renewal opportunities.

3.6 Confidentiality and Data Protection

The Partner agrees to:

- (a)** Maintain strict confidentiality regarding all proprietary information shared by the Company, including pricing structures, feature roadmap, technical architecture, and customer lists;
- (b)** Implement appropriate security measures to protect any End-User data or credentials that may be shared during implementation;
- (c)** Not access, copy, store, or misuse any End-User financial or business data stored within the Product;
- (d)** Comply fully with data protection regulations, including the Information Technology Act, 2000, and applicable GST and tax regulations;
- (e)** Execute a separate Data Processing Addendum (DPA) if required by the Company for handling sensitive customer data.

4. OBLIGATIONS OF THE COMPANY

4.1 Product Provisioning and Licensing

The Company shall:

- (a)** Upon receipt of a confirmed purchase order and payment clearance, generate and deliver license keys, access credentials, and login credentials within **[24 hours]**;



(b) Provide each End-User with a unique license key or subscription access tied to their organization;

(c) Ensure that licenses are provisioned with the features, user seats, and modules as specified in the sales agreement;

(d) Maintain license validity throughout the subscription period.

4.2 Technical Support (Tier 2)

The Company shall:

(a) Provide technical support for complex issues, including:

- Bug identification and resolution.
- Server/infrastructure issues.
- System performance and optimization.
- Integration and API troubleshooting.

(b) Respond to Partner escalations within **[12-24 hours]** during business hours;

(c) Maintain a documented ticketing system for tracking support requests;

(d) Provide regular system updates, security patches, and product enhancements without additional cost to End-Users during the license period.

4.3 Marketing and Sales Support

The Company shall:

(a) Provide the Partner with:

- Sales collateral (brochures, feature sheets, case studies).
- Digital marketing assets (logos, product screenshots, demo videos).
- Presentation decks and sales training materials.

(b) Conduct quarterly business reviews to discuss pipeline, conversion rates, and market feedback;

(c) Participate in joint customer presentations and demos as requested (subject to availability).



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4.4 Implementation Support

The Company shall:

- (a)** Provide technical guidance and recommendations for data migration and integration;
- (b)** Conduct product orientation sessions with the Partner's implementation team;
- (c)** Provide API documentation and technical specifications for integration with Tally or other systems;
- (d)** Resolve technical blockers that arise during implementation.

4.5 Product Updates and Maintenance

The Company shall:

- (a)** Notify the Partner of upcoming product updates, new features, and deprecations;
 - (b)** Schedule maintenance windows with advance notice to minimize disruption.
-

5. COMMERCIAL TERMS AND PAYMENT

5.1 Pricing Model

The Product shall be priced as follows:

- (a) List Price:** The Company determines the standard list price as below:

Product on an annual subscription basis @ ₹1200 per user per annum

Product on perpetual Plan with 10 years support for 20 users @ ₹ 1,20,000/= per installation

Product on Enterprise Plan with min. of 25 users @ 1000 per user per annum.

Product on Enterprise Plan with min. of 50+ users @ 900 per user per annum.

- (b) Price Changes:** The Company retains the right to adjust pricing with **[30-60 days]** advance notice to existing Partners and customers.



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5.2 Revenue Sharing Schedule

The Parties agree to a revenue collection and sharing model as follows:

- **Collection from End-User:** The amount received based on payment option provided by the Company from time to time.
- **Partner Commission:** The Partner receives **20% of the amount collected**.

5.3 Recurring Commission (Renewal Years)

For subscription renewals in Years 2 and beyond:

(a) If the End-User renews directly with the Company (Partner not involved), the Partner receives **10% commission** on renewals.

(b) If the Partner is responsible for renewal sales and retention, the Partner receives **[20%]** commission on the renewal fee collected (to be agreed based on Partner's ongoing involvement).

(c) Renewal commissions are paid in full upon receipt of renewal payment from the End-User.

5.4 Implementation and Training Fees

(a) The Partner is entitled to charge the End-User a separate "**Implementation and Training Fee**" for services provided under Section 3.3 (Implementation Services).

(b) The Partner retains **80% of the Implementation and Training Fee** — 20% is shared with the Company.

(c) The Partner shall clearly itemize Implementation fees separately from License fees in all customer quotes and invoices.

(d) Recommended Implementation fees: **₹20,000 - 50,000** depending on complexity and scope (to be agreed with End-User).

5.5 Payment Terms and Schedule

(a) **Commission Calculation:** Partner commissions are calculated monthly based on actual payments received from End-Users.

(b) **Payment Timing:** Commissions are paid by the Company to the Partner within **[10 days]** of the end of the following month (e.g., January commissions paid by February 10).



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(c) Payment Method: Payments are made via bank transfer to the Partner's registered bank account. GST (if applicable) is added separately.

(d) Tax Compliance: The Partner is responsible for providing valid tax compliance documents (GST registration, PAN, TDS declaration) before the first payment.

(e) Invoicing: The Partner shall submit monthly commission statements along with supporting documentation (customer invoices, payment receipts) by the 5th of each month.

(f) Reconciliation: The Company shall reconcile commission statements within 10 days. Disputes must be raised within 30 days of statement receipt.

5.6 GST and Tax Implications

(a) Commissions paid to the Partner are subject to applicable Goods and Services Tax (GST) at the prevailing rate **[18%]**.

(b) The Company shall issue monthly invoices to the Partner for commissions earned.

(c) The Partner is responsible for:

- Registering for GST if required by law.
- Filing GST returns and maintaining compliance.
- Reporting commission income to income tax authorities.

(d) TDS (Tax Deducted at Source) shall be applied as per applicable income tax regulations if the Partner's annual commission exceeds the threshold.

5.7 Accounting and Reporting

The Company shall provide:

(a) Monthly commission statements detailing:

- Customer names and license fees.
- Tranche-wise collections and commission calculations.
- Implementation fees (for reference only).

(b) Quarterly business performance reports including:

- Pipeline and conversion metrics.
- Customer acquisition costs and ROI.
- Market feedback and improvement suggestions.



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5.8 Chargeback and Refund Policy

(a) If an End-User requests a refund within **[30 days]** of the initial payment in case of Perpetual Plan, the Company shall refund the End-User after deducting the applicable charges, and the Partner's commission shall be reversed proportionally.

(b) If a chargeback occurs due to payment disputes, the Partner's commission is reversed until the dispute is resolved.

(c) If an End-User disputes the implementation quality, the Partner may be required to refund or re-perform implementation services at its cost.

6. INTELLECTUAL PROPERTY (IP)

6.1 Ownership of the Product

(a) The Company retains all right, title, and interest in the Product, including:

- Source code and object code.
- Software algorithms and logic.
- User interface and design.
- Documentation and training materials.
- Any enhancements or derivatives.

(b) The Partner acquires no ownership, proprietary, or licensing rights in the Product beyond the limited right to use it as expressly granted herein.

(c) All improvements, bug fixes, feature requests, or enhancements developed or suggested by the Partner remain the property of the Company.

6.2 Limited License Grant

The Company grants the Partner a **limited, non-exclusive, non-transferable, revocable license** to:

(a) Use the Product solely for the purpose of demonstrating, evaluating, and implementing the Product for End-Users within the Territory;

(b) Access Product documentation and technical materials for internal use and training.

(c) This license is granted only for the duration of this Agreement and is automatically revoked upon termination.



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6.3 Trademark and Brand Usage

(a) The Partner is granted a limited, revocable right to use the Company's brand name, logo, and trademarks solely for marketing and promoting the Product during the term of this Agreement.

(b) All usage must comply with the Company's brand guidelines (to be provided).

(c) The Partner shall not use the Company's trademarks in a manner that:

- Creates a false association or endorsement.
- Implies ownership or control.
- Dilutes or damages the Company's brand reputation.

(d) Upon termination, the Partner must cease all use of the Company's trademarks and remove all branding materials.

6.4 Partner Intellectual Property

(a) The Partner retains ownership of its own proprietary materials, customer lists, sales strategies, and implementation methodologies.

(b) The Company shall not use, copy, or adapt the Partner's proprietary materials without prior written consent.

7. CONFIDENTIALITY AND DATA PROTECTION

7.1 Confidential Information

Both Parties agree to maintain strict confidentiality regarding:

(a) Proprietary business information (pricing structures, cost models, profit margins, financial data).

(b) Technical information (source code, architecture, API specifications, database schemas).

(c) Product roadmap and unreleased features.

(d) Customer lists, customer data, and transaction details.

(e) Any information explicitly marked as "Confidential" by either Party.



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7.2 Permitted Disclosure

(a) Either Party may disclose Confidential Information to its employees and authorized contractors who have a legitimate need to know, provided they are bound by confidentiality obligations.

(b) Disclosure to third parties requires prior written consent from the other Party, except as required by law.

7.3 Data Privacy and Protection

(a) The Partner acknowledges that the Product handles sensitive financial and operational data of Chartered Accountants and may be subject to regulations such as:

- Information Technology Act, 2000 and its Rules.
- Goods and Services Tax (GST) regulations.
- Income Tax regulations.
- RBI guidelines (if applicable).

(b) The Partner shall:

- Implement appropriate technical and organizational security measures.
- Not access, copy, store, or transmit End-User data outside the Product system without explicit authorization.
- Not use End-User data for any purpose other than providing implementation and support services.
- Comply with data localization requirements (data stored in India).

(c) The Partner shall immediately notify the Company of any data breach, unauthorized access, or security incident.

7.4 Duration of Confidentiality

Confidentiality obligations survive termination of this Agreement for a period of **[2 years]**.

8. TERM AND TERMINATION

8.1 Initial Term

This Agreement shall commence on the Effective Date and remain in effect for an initial period of **[1 year]** (the "**Initial Term**"), unless earlier terminated as provided herein.



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8.2 Automatic Renewal

Upon expiry of the Initial Term, this Agreement shall automatically renew for successive periods of **[1 year]** each (each, a "**Renewal Term**") unless either Party provides written notice of non-renewal at least **[90 days]** prior to the end of the then-current term.

8.3 Termination for Convenience

Either Party may terminate this Agreement without cause by providing **[30 days]** written notice to the other Party. Such termination becomes effective after the 30-day notice period expires.

8.4 Termination for Breach

(a) If either Party materially breaches this Agreement and fails to remedy the breach within **[15 days]** of receiving written notice, the non-breaching Party may terminate this Agreement immediately.

(b) Material breaches include:

- Failure to meet minimum sales or service standards.
- Violation of confidentiality or data protection obligations.
- Unauthorized use of the other Party's intellectual property.
- Misrepresentation or fraud.

(c) The breaching Party shall have an opportunity to respond and remedy the breach before termination.

8.5 Termination for Performance

The Company may terminate this Agreement immediately if:

(a) The Partner fails to acquire or service a minimum number of customers (e.g., **[0 customers in 6 months]**);

(b) The Partner receives substantive customer complaints regarding service quality or conduct;

(c) The Partner becomes insolvent, bankrupt, or ceases business operations;

(d) The Partner engages in illegal or unethical conduct that harms the Company's reputation.



8.6 Effect of Termination

Upon termination of this Agreement:

(a) Cessation of Rights: The Partner's right to market, sell, and implement the Product immediately ceases. The Partner shall remove all Company branding and marketing materials.

(b) Existing Customer Relationships:

- Customers acquired by the Partner **before termination** retain access to the Product under their existing subscription agreement.
- The Partner **shall not** attempt to poach, redirect, or claim commissions on these customers post-termination.

(c) Commission Payments:

- The Company shall pay all earned commissions for sales completed and payments received **before the termination date**.
- Commissions for instalment payments due after termination shall be paid only if the Company continues to collect from the customer.
- No future commissions accrue after termination, except for instalment collections on sales finalized before termination.

(d) Transition Support:

- The Partner shall cooperate reasonably with the Company to transition existing End-User relationships (e.g., providing customer contacts, implementation notes).
- The Company may directly contact customers post-termination to offer support or assign a new implementation partner.

(e) Return of Materials:

- The Partner shall return or destroy all Confidential Information, customer data, and Company proprietary materials.
- The Partner shall cease use of the Company's trademarks and branding.

(f) Survival of Obligations:

- Confidentiality, data protection, and IP ownership obligations survive termination indefinitely.
- Indemnification and liability limitation clauses survive termination.



8.7 Post-Termination Customer Servicing

(a) If the Partner continues to serve existing End-Users post-termination (e.g., providing Tier 1 support), the Partner may continue to earn commissions on instalment payments collected for those customers.

(b) However, the Partner **may not** market or sell new subscriptions post-termination.

9. LIMITATION OF LIABILITY AND INDEMNIFICATION

9.1 Limitation of Liability

(a) **Company's Liability:** The Company's total liability to the Partner under this Agreement shall not exceed the total commissions and fees paid to the Partner in the **[12 months]** preceding the claim.

(b) **Excluded Damages:** Neither Party shall be liable for:

- Indirect, incidental, or consequential damages.
- Lost profits, lost revenue, or lost business opportunity.
- Data loss or corruption (except as a result of the Company's gross negligence).
- Any claim exceeding the liability cap above.

(c) This limitation does not apply to:

- Gross negligence or willful misconduct.
- Breach of confidentiality.
- Infringement of intellectual property rights.

9.2 Indemnification by Partner

The Partner shall indemnify and hold harmless the Company from any claims, damages, or liabilities arising from:

(a) The Partner's violation of this Agreement or applicable laws.

(b) False or misleading statements made by the Partner regarding the Product.

(c) The Partner's mishandling of End-User data or breach of confidentiality.



(d) Negligence or willful misconduct in providing implementation services.

(e) Any claims by third parties (including End-Users) alleging harm arising from the Partner's actions.

9.3 Indemnification by Company

The Company shall indemnify and hold harmless the Partner from any claims that the Product, as originally provided by the Company, infringes third-party intellectual property rights (patents, copyrights, trademarks).

10. DISPUTE RESOLUTION

10.1 Informal Resolution

In the event of any dispute, the Parties shall attempt to resolve it through good-faith negotiation between designated representatives for a period of **[15 days]**.

10.2 Escalation

If the dispute is not resolved, either Party may escalate the matter to senior management for mediation and settlement discussions for a further period of **[15 days]**.

10.3 Arbitration

If the dispute remains unresolved after informal negotiation and escalation, either Party may initiate arbitration as follows:

(a) Arbitrator: A single arbitrator shall be appointed mutually by both Parties.

(b) Venue: Arbitration shall take place in **Udumalpet** under the Arbitration and Conciliation Act, 1996.

(c) Cost Allocation: Unless the arbitrator decides otherwise, each Party shall bear its own costs.

(d) Confidentiality: Arbitration proceedings and awards shall be treated as confidential.

10.4 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India, without regard to conflict of law principles.





11. GENERAL PROVISIONS

11.1 Entire Agreement

This Agreement, together with any exhibits and schedules attached hereto, constitutes the entire agreement between the Parties and supersedes all prior and contemporaneous agreements, whether written or oral.

11.2 Amendment

This Agreement may only be amended, supplemented, or modified by written instrument executed by authorized representatives of both Parties.

11.3 Severability

If any provision of this Agreement is held to be invalid or unenforceable by a court of competent jurisdiction, such provision shall be reformed to the minimum extent necessary, and the remaining provisions shall continue in full force and effect.

11.4 Waiver

No waiver of any provision or breach of this Agreement shall be effective unless in writing signed by the waiving Party. Waiver of one breach does not constitute waiver of subsequent or other breaches.

11.5 Notices

All notices, demands, and communications required under this Agreement shall be in writing and shall be deemed delivered when:

- (a)** Hand-delivered.
- (b)** Sent via registered mail with acknowledgment due.
- (c)** Sent via email with read receipt (for routine matters).

Notices shall be addressed to the contact persons and addresses set forth in the signature block below.

11.6 Relationship of Parties

Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship. The Partner is an independent affiliate and is not authorized to bind the Company or represent it without express written consent.



11.7 Assignment

Neither Party may assign, transfer, or delegate its rights or obligations under this Agreement without prior written consent of the other Party. Any unauthorized assignment is void.

11.8 Counterparts

This Agreement may be executed in counterparts (including digital/scanned signatures), each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

11.9 Force Majeure

Neither Party shall be liable for any failure or delay in performance arising from unforeseeable circumstances beyond its control, including acts of God, natural disasters, war, pandemic, government action, or telecommunications failure. The affected Party must provide notice within **[5 days]** and make reasonable efforts to resume performance.

SCHEDULE A: CONTACT INFORMATION

Company:

Company Name	TBS Technologies Private Limited
Registered Address	130, 2nd Floor, Muneer Complex Palani Road, Udumalaipettai, Tamilnadu, India - 642126
PAN	AABCT3955D
GSTIN	33AABCT3955D1ZL

Partner:

Partner Name	_____
Principal Address	_____
PAN	_____
GSTIN	_____
Bank Details	_____



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SCHEDULE B: PRICING AND COMMISSION SCHEDULE

Product Pricing (Current):

Subscription Tier	Price	Features
[Tier 1: Basic]	[₹1,200] per user per annum	[Annual subscription – minimum 10 users]
[Tier 2: Perpetual]	[₹1,20,000]	[No annual subscription for 10 years – permitted 20 users]
[Tier 3: Enterprise]	[₹1,000] per user per annum	[Annual Subscription – minimum 25 users up to 50 users]
	[₹900] per user per annum	[Annual Subscription – minimum 50 users]

Commission Structure:

Product payment / Instalment	Partner Commission %
• Collections	• 20%

Renewal Commissions:

- Year 2+ Renewals (if Partner retains/renews): **[20%]** of renewal amount.

Implementation Fees:

- Recommended range: **₹20,000 – ₹50,000** (to be determined per engagement).
- Partner retains **90%** of implementation fees.

SCHEDULE C: ANNUAL PERFORMANCE TARGETS (OPTIONAL)

Metric	Year 1 Target	Review Frequency
New Customer Acquisitions	[10 customers]	Monthly/Quarterly
Revenue Generated	[₹2 lakhs]	Monthly/Quarterly
Customer Satisfaction Score	[80%+ NPS]	Quarterly
Implementation Quality	[90%+ on-time delivery]	Quarterly

Note: Failure to meet targets may trigger termination for performance under Section 8.5.



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TBS Technologies [P] Limited



Web

www.powerca.in

IN WITNESS WHEREOF

The Parties have executed this Agreement as of the date first written above.

FOR TBS Technologies [P] Limited:

Name: _____

Designation: _____

Date: _____

Signature: _____

FOR _____:

Name: _____

Designation: _____

Date: _____

Signature: _____



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